IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 203
CA(CAA)-27/ND/2024

IN THE MATTER OF:
Bert Marketing Pvt. Ltd ... Applicant/Petitioner

Under Section: 230-232 of the Companies Act, 2013

Order delivered on 11.11.2025

CORAM:
SH. ASHOK KUMAR BHARDWAJ **MS. REENA SINHA PURI**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant : CS Aditya jain
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

During the Course of the hearing, Ld. Counsel for the applicant could draw attention to the list of unsecured creditors qua Bert Marketing Pvt. Ltd. certified by the Chartered Accountant. We see that the addresses of four of the unsecured creditors are same. The relevant excerpt of the certificate given by Sunil Grover and Co., Chartered Accountant, reads thus:-

Sunil Grover & Co.
(Chartered Accountants)

RoomNo.305, Second Floor,
Emca Chamber,51, Daryaganj,
New Delhi -110 002
Phone:9811389303
Email id: skca02@yahoo.com

To,
The Board of Directors,
Bert Marketing Private Limited,
F-6/5, Basement, Vasant Vihar,
New Delhi –110057

We have verified the books of accounts and other relevant records produced before us by **Bert Marketing Private Limited** ('the Company') having its registered office at F-6/5, Basement, Vasant Vihar, New Delhi – 110057 and having CIN: U52322DL2001PTC112947 and PAN – AAECB7472Q. Based on our verification and explanation given to us, I, the undersigned, Chartered Accountant, do hereby certify that the Company has the following unsecured creditors as on **10th December 2023.**

S. No.	Name and Address of Creditors	Amount Due (in Rs.)
1.	ADI Fabrics Private Limited BE-92 & 93, Hari Nagar, New Delhi – 110064	16,01,070
2.	Libido Consulting Private Limited (Prop. Libido Enterprises) SF-16, Plot No.1, BG-1 & BG-II, Paschim Puri, New Delhi – 110063	21,94,614
3.	Amarshakti Services Private Limited (Prop. Amarshakti Enterprises) BE-92 & 93, Hari Nagar, New Delhi – 110064	18,75,152
4.	Sunil Grover & Co. Room No. 305, Second Floor, EMCA Chamber, 51, Daryaganj, New Delhi – 110002	15,000
5.	Caisson Engineering Private Limited (Prop. Caisson Traders) BE-92 & 93, Hari Nagar, New Delhi – 110064	14,29,230
6.	Vasu Retail Private Limited BE-92 & 93, Hari Nagar, New Delhi – 110064	10,86,191
	Total	82,01,257

Let the applicant No. 1 clarify the position that how the address of four of the suppliers/unsecured creditors would be same. In the affidavit, they should also explain that in what capacity these four parties having the same address i.e, BE 92 & 93, Hari Nagar, New Delhi, are creditors qua the debtor company. The affidavit should be accompanied by the relevant document regarding the transaction referred to in the certificate. Let the needful be done within two weeks from today.

List the matter on **27.01.2026.**

-Sd/-
(REENA SINHA PURI)
MEMBER (T)

-Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Poonam/Hetash